

STATE OF NEW YORK

9020--B

Cal. No. 532

IN SENATE

January 22, 2026

Introduced by Sens. HARCKHAM, SKOUFIS, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public officers law, in relation to expanding geographical boundaries for residency requirements of correction officers employed by certain local correctional facilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 3 of the public officers law is amended by adding a
2 new subdivision 2-e to read as follows:

3 2-e. Neither the provisions of this section, nor of any general,
4 special or local law, charter, code, ordinance, resolution, rule or
5 regulation, requiring a person to be a resident of the state or the
6 political subdivision or municipal corporation of the state for which
7 such person's official functions are required to be exercised, shall
8 apply to the appointment of a person as a uniformed member of a depart-
9 ment of correction or sheriff's department of Rockland or Orange coun-
10 ties if such member resides (a) in a county within the state contiguous
11 to Rockland or Orange counties; or (b) in a county within a state
12 contiguous to Rockland or Orange counties; and such uniformed member's
13 residence is less than forty-five miles from Rockland or Orange county
14 measured from their respective nearest boundary lines.

15 § 2. Section 2 of the public officers law is amended to read as
16 follows:

17 § 2. Definitions. As used in this chapter:

18 1. The term "state officer" includes every officer for whom all the
19 electors of the state are entitled to vote, members of the legislature,
20 justices of the supreme court, regents of the university, and every
21 officer, appointed by one or more state officers, or by the legislature,
22 and authorized to exercise [~~his~~] their official functions throughout the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 entire state, or without limitation to any political subdivision of the
2 state, except United States senators, members of congress, and electors
3 for president and vice-president of the United States.

4 2. The term "local officer" includes every other officer who is
5 electd by the electors of a portion only of the state, every officer of
6 a political subdivision or municipal corporation of the state, and every
7 officer limited in the execution of [his] their official functions to a
8 portion only of the state. The office of a state officer is a state
9 office. The office of a local officer is a local office.

10 3. The term "uniformed member of a department of correction or sher-
11 iff's department of Rockland or Orange county" shall mean all uniformed
12 personnel employed by the sheriff's department or local correctional
13 facility of Rockland or Orange county as a correction recruit,
14 correction officer, correction corporal, correction sergeant, correction
15 lieutenant, correction captain, correction colonel, chief of
16 corrections, assistant warden or warden.

17 § 3. Section 30 of the public officers law is amended by adding a new
18 subdivision 9 to read as follows:

19 9. Neither the provisions of this section, nor any general, special or
20 local law, charter, code, ordinance, resolution, rule or regulation,
21 creating a vacancy in a local office of a political subdivision or
22 municipal corporation of the state if the incumbent thereof ceases to be
23 a resident of the state, such political subdivision or municipal corpo-
24 ration, shall apply in the case of a person employed as a uniformed
25 member of a department of correction or sheriff's department of Rockland
26 or Orange county provided (a) such uniformed member of a department of
27 correction or sheriff's department of Rockland or Orange county resides
28 in a county within a state contiguous to Rockland or Orange county; and
29 (b) such uniformed member of a department of correction or sheriff's
30 department described in paragraph (a) of this subdivision where the
31 former is less than forty-five miles from Rockland or Orange county,
32 measured from their respective nearest boundary lines.

33 § 4. This act shall take effect immediately.